



REPUBLIC OF NAURU

NAURU ECONOMIC AND CLIMATE RESILIENCE CITIZENSHIP (AMENDMENT) ACT 2025

No. 50 of 2025

An Act to amend the *Nauru Economic and Climate Resilience Citizenship Act 2024* and for other related purposes.

Certified: 23 December 2025

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Enacted by the Parliament of Nauru as follows:

1 Short title

This Act may be cited as the *Nauru Economic and Climate Resilience Citizenship (Amendment) Act 2025*.

2 Commencement

This Act commences on the date it is certified by the Speaker.

3 Amendment of the Nauru Economic and Climate Resilience Citizenship Act 2024

The *Nauru Economic and Climate Resilience Citizenship Act 2024* is amended by the provisions of this Act.

4 Amendment of Section 3

Section 3 is amended by deleting the definition of '**Dependent**' and substituting as follows:

'**Dependent**' means:

- (a) the spouse of the Principal Applicant from a monogamous relationship;
- (b) a child, including an adopted child, of the Principal Applicant or of the spouse;
- (c) a parent of the Principal Applicant or of the spouse of the Principal Applicant;
- (d) a grandparent of the Principal Applicant or of the spouse; or
- (e) a sibling of the Principal Applicant or of the spouse or defacto partner;'

5 Amendment of Section 9

Section 9 is deleted and substituted as follows:

'9 Nauru Economic and Climate Resilience Citizenship Program and designated special projects

- (1) The Nauru Economic and Climate Resilience Citizenship Program is hereby established.
- (2) The Program shall be administered by the Program Office.
- (3) The objective of the Program is for the economic development and climate resilience for the Republic, which permits any foreign national to pay a contribution in accordance with the amounts prescribed by the Cabinet.
- (4) Subject to Part 3, a person who makes a contribution for the purposes of the Program under subsection (3) is eligible to acquire economic and climate resilience citizenship of the Republic.
- (5) The contribution under subsection (3), shall be paid into the Treasury Fund by the Program Office before the conferment of the Certificate of Citizenship.
- (6) Prior to the contribution being paid into the Treasury Fund under

- subsection (5), the following fees shall be deducted:
- (a) Agent's fee prescribed under Section 19; and
 - (b) administration fee of the Program Office.
- (7) The Cabinet may on the recommendation of the Minister and in consultation with the Program Office, designate a Special Project for which a temporary modification or discount to the contribution payable under this Act may apply.
 - (8) The designation under subsection (7) shall specify:
 - (a) the name and purpose of the Special Project;
 - (b) the amount of the contribution discount;
 - (c) the composition of the discount as between contribution, administrative or other prescribed fees;
 - (d) the number of eligible applications or the duration of the Special Project; and
 - (e) any other requirements the Cabinet considers appropriate.
 - (9) The Program Office shall give effect to the designation by the Cabinet under subsection (7) and keep adequate accounting of such modification or discount in its financial or administrative records.
 - (10) The Cabinet in making a designation under subsection (7), shall not reduce or vary any prescribed due diligence fee.'

6 Amendment of Section 30

Section 30 is deleted and substituted as follows:

'31 Regulations

- (1) The Cabinet may make regulations prescribing all matters necessary or convenient to be prescribed for carrying out or giving effect to this Act
- (2) Without limiting subsection (1), the regulations may provide for:
 - (a) the procedure for submission, processing and approval of applications;
 - (b) the minimum requirements for the format, layout and manner of completion of any forms required under this Act, including authorising the Program Office to issue, approve and amend the detailed design of such forms from time to time, provided they comply with those minimum requirements;
 - (c) the minimum information and documents that must be included in, or accompany, any forms or documents required under this Act;
 - (d) the making, lodgement, processing and retention of applications, notices and other documents by electronic means, including:
 - (i) the use of electronic communication systems approved by the Program Office;
 - (ii) the form, format and technical standards of electronic documents;
 - (iii) security, authentication and access controls; and
 - (iv) the keeping of electronic records; and
 - (e) the fees for any applications or services that are required to be paid under this Act.'

Insertion of Section 30

A new Section 30 is inserted as follows:

'30 Electronic applications, documents, certification and storage

- (1) For the purposes of this Act, a requirement that a document be in writing is taken to be satisfied by an electronic communication which is accessible so as to be useable for subsequent reference, where it complies with any prescribed requirements.
- (2) Where this Act or Regulations requires a person to sign a document, the requirement is taken to be satisfied, in relation to an electronic communication, where:
 - (a) a method is used to identify the person and to indicate that person's approval of the information communicated; and
 - (b) the method is as reliable as is appropriate in light of the purpose for which the electronic communication is generated or communicated, and in light of all the circumstances, including any requirements prescribed by regulations.
- (3) A requirement under this Act that a document be sealed, stamped, certified, endorsed or otherwise authenticated is taken to be satisfied in relation to an electronic document if an approved electronic method of authentication is used in accordance with the regulations.
- (4) A document, notice or other communication that is transmitted to the Program Office or the Registrar by electronic means in accordance with this Act or the regulations has the same legal effect as if it had been given, lodged or filed in hard copy.
- (5) The regulations may prescribe:
 - (a) when an electronic communication is taken to have been sent or received;
 - (b) systems or platforms approved for the electronic lodgement of documents; and
 - (c) any additional requirements for the validity, retention and evidential status of electronic documents.
- (6) A certificate signed by the Chief Executive Officer of the Program Office or the Registrar stating that a specified electronic record was made or kept in the ordinary course of the Program Office's or Registrar's operations, and stating the date and time the record shows an application or document as having been received, is admissible in evidence and is, in the absence of proof to the contrary, proof of the matters stated in it.'